Ethics Futures Analysis – PADM 6000 Final Exam

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I. 2035 Scenario

In 2035, the U.S. Supreme Court rules the Americans with Disabilities Act (ADA) unconstitutional, arguing that the law's requirements to ensure accessibility on public college campuses go beyond Congress' power to govern state institutions. The decision immediately upends legal protections for millions of Americans with disabilities, and the responsibility to determine which (if any) accessibility requirements will continue to be enforced in states goes to the states themselves. Although accessibility decisions will be left up the states, the federal government puts extreme pressure on states to fall in line or risk losing federal funding. In Michigan, the legislature repeals additional disability protections in state law and orders public universities to "streamline and modernize service structures" for students with disabilities, no longer subject to federal mandates. While the state presents this move as one part of a larger campaign to restore "institutional autonomy" and "achieve fiscal responsibility," there is no question that doing so has led to a dramatic erosion of formal accountability.

WMU responds to the new policy landscape with a rapid cost containment effort. DSS, the university office long responsible for academic accommodations, accessible technology, adaptive materials, and testing support, is put on a six-month track to full dissolution. In the interim, the university enacts a temporary "Accommodations Budget Freeze Review" across all disability services, halting work on all such services while deans and department chairs are ordered to reframe and review accommodation requests at the unit level. Emphasizing "pedagogical integrity," "strategic mission alignment," and "fiscal discipline," administrators reframe all accommodations not as civil rights mandates but as discretionary decisions to use different instructional methods. Faculty, advisors, and support staff who have been accustomed to clear procedures, protocols, and decision-making authority now find themselves ill-equipped to interpret their roles and responsibilities. Students with disabilities soon find it more difficult to receive alternate test formats and housing and transportation adjustments, face delays in receiving accessible materials, and encounter wide variation in decisions across departments. Students receive conflicting instructions and information, while faculty become more cautious about making any accommodations that might later be called out for failing to align with the university's new expectations. As the safety net of statewide protections is withdrawn, disabled students' position in the university's structures becomes more at odds with their needs and interests.

II. Administrative Evil Analysis

In many ways, WMU's case demonstrates multiple pathways through which administrative evil can occur, even when motivated by a desire for self-preservation and when no one person or group is directly responsible for particular decisions. Balfour and Adams (1996) explain that administrative evil can become institutionalized by rationalizing and routinizing otherwise unconscionable harms. In this way, technical language, diffusion of responsibility, moral inversion, and pressure to comply with harmful institutional priorities can lead to normalization and fragmentation of harm, even when each person's contribution on its own would not be sufficient to cause the end result.

The language of budget alignment, fiscal discipline, and pedagogical discretion, as well as the willingness to frame decisions to cut funding, infrastructure, and support for people with disabilities in these terms, are major factors in the case. Balfour and Adams (1996) show how administrative evil is sustained by technical rationality and moral euphemism, leading to erosion of individual actors' moral awareness and tacit acceptance of administrative decisions that cause harm.

The use of moral inversion by university administrators is another mechanism by which harm is normalized and intensified. Balfour and Adams (1996) point to the reframing of cutting accommodations as not just necessary to achieve fiscal discipline, but as a way to maintain academic integrity and fairness for all students.

Diffusion of responsibility plays an important role in producing structural harms to students and faculty who must navigate the rapidly changing environment at WMU. As the responsibility for oversight of accommodation requests is removed from DSS, no other actor has explicit authority to make decisions or intervene on behalf of students. Headley and Wright (2021) demonstrate that diffusion of responsibility is key to both justifying and mitigating individual moral culpability in cases of administrative evil, even when individual actors might be privately horrified by the results of their collective action.

Normalization of harm occurs within weeks as inaccessible course materials and denial of reasonable adjustments become the status quo. Balfour and Adams (1996) demonstrate that administrative evil becomes entrenched and difficult to root out when it is routinized and legitimized by an institution.

Structural inequities produced by this case can be described using Frederickson's (1990) social equity framework. Students with disabilities suffer worse academic, financial, and mental health outcomes that put them at risk of leaving university. The effects of ableism in university systems are made worse for historically marginalized groups who experience multiple overlapping forms of oppression and marginalization. Blessett et al. (2019) connect systemic inequity with the common institutional practice of reinforcing the status quo.

In addition, organizational pressures to prioritize other values distort moral judgment among university faculty and staff. Fear of administrative action against faculty who make

accommodations and fear of job loss among staff involved in dismantling DSS both stem from an organizational context in which ethical action has been suppressed by higher priorities. Balfour and Adams (1996) argue that people often play a role in administrative evil not necessarily because of their personal beliefs, but because of pressure to act against their better judgment.

III. Dissent Analysis

O'Leary's (2014) theory on dissent and "guerrilla government" is helpful in understanding how resistance to administrative evil might play out at WMU. Many university employees would likely retain a sense of moral obligation to the students with disabilities in their community, even in the face of changing legal structures.

Workers in DSS, already familiar with students' needs and established procedures, are likely to raise concerns early on in the process. Faculty who have had training or experience in Universal Design for Learning or previous accommodation requests might be inclined to push back against accommodation cuts. Graduate instructors and advisors might speak up when they see the direct consequences that withdrawing support has on their advisees. The actors most likely to push back against the dismantling of DSS are those with clear professional or personal values and commitments to justice, fairness, and other public service ethics values.

Dissent from employees, however, comes with risks. Expressing moral objection to institutional decision-making and actions can lead to retaliation, a lack of promotion, or marginalization in the organization. In an institutional context in which disability rights have been taken off the books, those same employees who make ethical objections risk being framed as being insubordinate or otherwise not aligned with the university's values.

Dissent is only constructive when it can be done in ways that maintain trust, accountability, transparency, and cooperation across units. Constructive dissent may show up in maintaining standards at the department level, continuing to provide support to students informally, or documenting cases of harm that students experience. Destructive dissent, on the other hand, may become isolated, secretive, and non-transparent, while refusing to work with other departments or administrators to find solutions.

Administrators must acknowledge tension and contradiction that external political pressures have created, provide safe spaces for dialogue and dissent, and work to develop interim decision-making procedures for accommodation requests until such time as the ADA can be restored.

O'Leary (2014) reminds us that dissent is a sign that an organization is out of balance and that dissenters have a critical role in providing feedback to public agencies in ways that can help them do better in the future.

IV. Proposed Ethical Principle or Governance Structure

One forward-looking ethical safeguard is the establishment of the Michigan Higher Education Accessibility Assurance Board (MHEAAB). This independent board would be charged with setting, monitoring, and enforcing accessibility standards across Michigan's public universities. The board would include disabled students and alumni, accessibility and universal design experts, technologists, community advocates, and public administrators.

MHEAAB helps to fill the governance vacuum created by the elimination of ADA protections by providing clear, predictable regulation and a point of accountability across all units of Michigan's public university system. It also prevents fragmentation and diffusion of responsibility and breaks up normalization of harmful practices by providing transparent, public reporting and independent oversight.

MHEAAB also advances the social equity pillar by standardizing accessibility expectations and increasing the likelihood that accessibility needs are seen as a matter of equity rather than individual or institutional budget. MHEAAB also increases democratic accountability by incorporating diverse community members and providing transparent channels for complaint, advocacy, and public oversight of university performance.

By building in safeguards that are not as easily erased by changing political priorities and circumstances, MHEAAB would help to protect enduring ethical commitments to dignity, fairness, and public service that must continue to inform higher education's mission even if legal requirements change.

V. Synthesis Reflection

One key thing I learned from this simulation is how fragile ethical commitments are when legal structures weaken and organizational incentives become stronger. Administrative evil becomes possible not because any one individual or group is driven by malice or personal gain, but because institutions normalize, rationalize, and routinize harm, obscure or diffuse responsibility, and prioritize operational efficiency at the expense of human outcomes. I also saw clearly how quickly access and equity can be destroyed when higher political forces decide it is in the university's interest to do so.

In thinking ahead, I believe that the lessons from this scenario point to a need for renewed focus on equity, transparency, and moral courage in administrative work. Legal mandates are important but are not sufficient on their own to ensure ethical action. Institutions need to also focus on building organizational cultures and systems that value ethical thinking, allow space for dissent, and intentionally center the needs of historically marginalized populations.

I found that Frederickson's (1990) social equity and the subsequent work of Balfour, Adams, O'Leary, and others provided important insights on how to design governance structures and organizational systems that will help to sustain ethical action in the future. If

future scenarios of political erosion of public values are likely, there is a need to strengthen administrative structures in ways that will make it more difficult for those values to be rolled back.

For public sector ethics to advance in the future, it will be important to build systems that are capable of holding up the dignity and rights of every human being, regardless of shifts in political winds. Administrators must be willing not only to comply with the law, but to act in ways that are in alignment with the broader ethical commitments that have animated public service over the past century.

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